

Diver Medical | Participant Questionnaire

Recreational scuba diving and freediving requires good physical and mental health. There are a few medical conditions which can be hazardous while diving, listed below. Those who have, or are predisposed to, any of these conditions, should be evaluated by a physician. This Diver Medical Participant Questionnaire provides a basis to determine if you should seek out that evaluation. If you have any concerns about your diving fitness not represented on this form, consult with your physician before diving. If you are feeling ill, avoid diving. If you think you may have a contagious disease, protect yourself and others by not participating in dive training and/or dive activities. References to "diving" on this form encompass both recreational scuba diving and freediving. This form is principally designed as an initial medical screen for new divers, but is also appropriate for divers taking continuing education. For your safety, and that of others who may dive with you, answer all questions honestly.

Directions

Complete this questionnaire as a prerequisite to a recreational scuba diving or freediving course.

Note to women: If you are pregnant, or attempting to become pregnant, *do not dive*.

1	I have had problems with my lungs, breathing, heart and/or blood affecting my normal physical or mental performance.	Yes ☐ Go to box A	No ☐
2	I am over 45 years of age.	Yes ☐ Go to box B	No ☐
3	I struggle to perform moderate exercise (for example, walk 1.6 kilometer/one mile in 14 minutes or swim 200 meters/yards without resting), OR I have been unable to participate in a normal physical activity due to fitness or health reasons within the past 12 months.	Yes ☐ *	No ☐
4	I have had problems with my eyes, ears, or nasal passages/sinuses.	Yes ☐ Go to box C	No ☐
5	I have had surgery within the last 12 months, OR I have ongoing problems related to past surgery.	Yes ☐ *	No ☐
6	I have lost consciousness, had migraine headaches, seizures, stroke, significant head injury, or suffer from persistent neurologic injury or disease.	Yes ☐ Go to box D	No ☐
7	I am currently undergoing treatment (or have required treatment within the last five years) for psychological problems, personality disorder, panic attacks, or an addiction to drugs or alcohol; or, I have been diagnosed with a learning or developmental disability.	Yes ☐ Go to box E	No ☐
8	I have had back problems, hernia, ulcers, or diabetes.	Yes ☐ Go to box F	No ☐
9	I have had stomach or intestine problems, including recent diarrhea.	Yes ☐ Go to box G	No ☐
10	I am taking prescription medications (with the exception of birth control or anti-malarial drugs other than mefloquine (Lariam).	Yes ☐ *	No ☐

Participant Signature

If you answered NO to all 10 questions above, a medical evaluation is not required. Please read and agree to the participant statement below by signing and dating it.

Participant Statement: I have answered all questions honestly, and understand that I accept responsibility for any consequences resulting from any questions I may have answered inaccurately or for my failure to disclose any existing or past health conditions.

Participant Signature (or, if a minor, participant's parent/guardian signature required.)

Date (dd/mm/yyyy)

Participant Name (Print)

Birthdate (dd/mm/yyyy)

All Professional Staff of Kyalami Charters / Kyalami Scuba Club

Kyalami Charters / Kyalami Scuba Club

Instructor Name (Print)

Facility Name (Print)

* **If you answered YES** to questions 3, 5 or 10 above **OR** to any of the questions on page 2, please read and agree to the statement above by signing and dating it **AND take all three pages of this form (Participant Questionnaire and the Physician's Evaluation Form) to your physician** for a medical evaluation. Participation in a diving course requires your physician's approval.

Diver Medical | Participant Questionnaire Continued

BOX A – I HAVE/HAVE HAD:		
Chest surgery, heart surgery, heart valve surgery, an implantable medical device (eg, stent, pacemaker, neurostimulator), pneumothorax, and/or chronic lung disease.	Yes ☐ *	No ☐
Asthma, wheezing, severe allergies, hay fever or congested airways within the last 12 months that limits my physical activity/exercise.	Yes ☐ *	No ☐
A problem or illness involving my heart such as: angina, chest pain on exertion, heart failure, immersion pulmonary edema, heart attack or stroke, OR am taking medication for any heart condition.	Yes ☐ *	No ☐
Recurrent bronchitis and currently coughing within the past 12 months, OR have been diagnosed with emphysema.	Yes ☐ *	No ☐
Symptoms affecting my lungs, breathing, heart and/or blood in the last 30 days that impair my physical or mental performance.	Yes ☐ *	No ☐
BOX B – I AM OVER 45 YEARS OF AGE AND:		
I currently smoke or inhale nicotine by other means.	Yes ☐ *	No ☐
I have a high cholesterol level.	Yes ☐ *	No ☐
I have high blood pressure.	Yes ☐ *	No ☐
I have had a close blood relative die suddenly or of cardiac disease or stroke before the age of 50, OR have a family history of heart disease before age 50 (including abnormal heart rhythms, coronary artery disease or cardiomyopathy).	Yes ☐ *	No ☐
BOX C – I HAVE/HAVE HAD:		
Sinus surgery within the last 6 months.	Yes ☐ *	No ☐
Ear disease or ear surgery, hearing loss, or problems with balance.	Yes ☐ *	No ☐
Recurrent sinusitis within the past 12 months.	Yes ☐ *	No ☐
Eye surgery within the past 3 months.	Yes ☐ *	No ☐
BOX D – I HAVE/HAVE HAD:		
Head injury with loss of consciousness within the past 5 years.	Yes ☐ *	No ☐
Persistent neurologic injury or disease.	Yes ☐ *	No ☐
Recurring migraine headaches within the past 12 months, or take medications to prevent them.	Yes ☐ *	No ☐
Blackouts or fainting (full/partial loss of consciousness) within the last 5 years.	Yes ☐ *	No ☐
Epilepsy, seizures, or convulsions, OR take medications to prevent them.	Yes ☐ *	No ☐
BOX E – I HAVE/HAVE HAD:		
Behavioral health, mental or psychological problems requiring medical/psychiatric treatment.	Yes ☐ *	No ☐
Major depression, suicidal ideation, panic attacks, uncontrolled bipolar disorder requiring medication/psychiatric treatment.	Yes ☐ *	No ☐
Been diagnosed with a mental health condition or a learning/developmental disorder that requires ongoing care or special accommodation.	Yes ☐ *	No ☐
An addiction to drugs or alcohol requiring treatment within the last 5 years.	Yes ☐ *	No ☐
BOX F – I HAVE/HAVE HAD:		
Recurrent back problems in the last 6 months that limit my everyday activity.	Yes ☐ *	No ☐
Back or spinal surgery within the last 12 months.	Yes ☐ *	No ☐
Diabetes, either drug or diet controlled, OR gestational diabetes within the last 12 months.	Yes ☐ *	No ☐
An uncorrected hernia that limits my physical abilities.	Yes ☐ *	No ☐
Active or untreated ulcers, problem wounds, or ulcer surgery within the last 6 months.	Yes ☐ *	No ☐
BOX G – I HAVE HAD:		
Ostomy surgery and do not have medical clearance to swim or engage in physical activity.	Yes ☐ *	No ☐
Dehydration requiring medical intervention within the last 7 days.	Yes ☐ *	No ☐
Active or untreated stomach or intestinal ulcers or ulcer surgery within the last 6 months.	Yes ☐ *	No ☐
Frequent heartburn, regurgitation, or gastroesophageal reflux disease (GERD).	Yes ☐ *	No ☐
Active or uncontrolled ulcerative colitis or Crohn's disease.	Yes ☐ *	No ☐
Bariatric surgery within the last 12 months.	Yes ☐ *	No ☐



Release of Liability/Assumption of Risk/Non-agency Acknowledgment Form Continuing Education Administrative Document

NOTE: Also complete and attach the Diver Medical Form (Product No. 10346)

This is a statement in which you are informed of the established safe diving practices for skin and scuba diving. These practices have been compiled for your review and acknowledgment and are intended to increase your comfort and safety in diving. Your signature on this statement is required as proof that you are aware of these safe diving practices. Read and discuss the statement prior to signing it. If you are a minor, this form must also be signed by a parent or guardian.

I, _____ participant name _____
understand that as a diver I should:

1. Maintain good mental and physical fitness for diving. Avoid being under the influence of alcohol or dangerous drugs when diving. Keep proficient in diving skills, striving to increase them through continuing education and reviewing them in controlled conditions after a period of diving inactivity, and refer to my course materials to stay current and refresh myself on important information.
2. Be familiar with my dive sites. If not, obtain a formal diving orientation from a knowledgeable, local source. If diving conditions are worse than those in which I am experienced, postpone diving or select an alternate site with better conditions. Engage only in diving activities consistent with my training and experience. Do not engage in cave or technical diving unless specifically trained to do so.
3. Use complete, well-maintained, reliable equipment with which I am familiar; and inspect it for correct fit and function prior to each dive. Have a buoyancy control device, low-pressure buoyancy control inflation system, submersible pressure gauge and alternate air source and dive planning/monitoring device (dive computer, RDP/dive tables—whichever you are trained to use) when scuba diving. Deny use of my equipment to uncertified divers.
4. Listen carefully to dive briefings and directions and respect the advice of those supervising my diving activities. Recognize that additional training is recommended for participation in specialty diving activities, in other geographic areas and after periods of inactivity that exceed six months.
5. Adhere to the buddy system throughout every dive. Plan dives – including communications, procedures for reuniting in case of separation and emergency procedures – with my buddy.
6. Be proficient in dive planning (dive computer or dive table use). Make all dives no decompression dives and allow a margin of safety. Have a means to monitor depth and time underwater. Limit maximum depth to my level of training and experience. Ascend at a rate of not more than 18 metres/60 feet per minute. Be a SAFE diver – Slowly Ascend From Every dive. Make a safety stop as an added precaution, usually at 5 metres/15 feet for three minutes or longer.
7. Maintain proper buoyancy. Adjust weighting at the surface for neutral buoyancy with no air in my buoyancy control device. Maintain neutral buoyancy while underwater. Be buoyant for surface swimming and resting. Have weights clear for easy removal, and establish buoyancy when in distress while diving. Carry at least one surface signaling device (such as signal tube, whistle, mirror).
8. Breathe properly for diving. Never breath-hold or skip-breathe when breathing compressed air, and avoid excessive hyperventilation when breath-hold diving. Avoid overexertion while in and underwater and dive within my limitations.
9. Use a boat, float or other surface support station, whenever feasible.
10. Know and obey local dive laws and regulations, including fish and game and dive flag laws. I have read the above statements and have had any questions answered to my satisfaction.

I understand the importance and purposes of these established practices. I recognize they are for my own safety and well-being, and that failure to adhere to them can place me in jeopardy when diving.

NON-AGENCY DISCLOSURE AND ACKNOWLEDGMENT AGREEMENT

I understand and agree that PADI Members ("Members"), including _____ Kyalami Charters / Kyalami Scuba Club
and/or any individual PADI Instructors and Divemasters associated with the program in which I am participating, are licensed to use various PADI Trademarks and to conduct PADI training, but are not agents, employees or franchisees of PADI Americas, Inc, or its parent, subsidiary and affiliated corporations ("PADI"). I further understand that Member business activities are independent, and are neither owned nor operated by PADI, and that while PADI establishes the standards for PADI diver training programs, it is not responsible for, nor does it have the right to control, the operation of the Members' business activities and the day-to-day conduct of PADI programs and supervision of divers by the Members or their associated staff. I further understand and agree on behalf of myself, my heirs and my estate that in the event of an injury or death during this activity, neither I nor my estate shall seek to hold PADI liable for the actions, inactions or negligence of

_____ Kyalami Charters / Kyalami Scuba Club

_____ and/or the instructors and divemasters associated with the activity.

Release of Liability/Assumption of Risk/Non-agency Acknowledgment Form

Continuing Education Administrative Document *continued*

LIABILITY RELEASE AND ASSUMPTION OF RISK AGREEMENT

I, _____, participant name, hereby affirm that I am aware that skin and scuba diving have inherent risks which may result in serious injury or death. I understand that diving with compressed air involves certain inherent risks; including but not limited to decompression sickness, embolism or other hyperbaric/air expansion injury that require treatment in a recompression chamber. I further understand that the open water diving trips which are necessary for training and for certification may be conducted at a site that is remote, either by time or distance or both, from such a recompression chamber. I still choose to proceed with such dives in spite of the possible absence of a recompression chamber in proximity to the dive site.

I understand this Liability Release and Assumption of Risk Agreement (Agreement) hereby encompasses and applies to all diver training activities and courses in which I choose to participate. These activities and courses may include, but are not limited to, altitude, boat, cavern, AWARE, deep, enriched air, photography/videography, diver propulsion vehicle, drift, dry suit, ice, multilevel, night, peak performance buoyancy, search & recovery, rebreather, underwater naturalist, navigator, wreck, adventure diver, rescue diver and other distinctive specialties (hereinafter "Programs").

I understand and agree that neither my instructor(s), divemasters(s), the facility which provides the Programs

Kyalami Charters / Kyalami Scuba Club, nor PADI Americas, Inc., nor its affiliate and subsidiary corporations, nor any of their respective employees, officers, agents, contractors or assigns (hereinafter referred to as "Released Parties") may be held liable or responsible in any way for any injury, death or other damages to me, my family, estate, heirs or assigns that may occur as a result of my participation in the Programs or as a result of the negligence of any party, including the Released Parties, whether passive or active.

In consideration of being allowed to participate in the Programs, I hereby personally assume all risks of the Programs, whether foreseen or unforeseen, that may befall me while I am a participant in the Programs including, but not limited to, the academics, confined water and/or open water activities. I further release, exempt and hold harmless said Programs and Released Parties from any claim or lawsuit by me, my family,

estate, heirs or assigns, arising out of my enrollment and participation in this program including both claims arising during the program or after I receive my certification(s).

I understand that past or present medical conditions may be contraindicated to my participation in the Programs. I declare that I am in good mental and physical fitness for diving, and that I am not under the influence of alcohol, nor am I under the influence of any drugs that are contraindicated to diving. If I am taking medication, I declare that I have seen a physician and have approval to dive while under the influence of the medication/drugs. I affirm it is my responsibility to inform my instructor of any and all changes to my health condition at any time during my participation in the Programs and agree to accept responsibility for my failure to do so.

I also understand that skin diving and scuba diving are physically strenuous activities and that I will be exerting myself during this program, and that if I am injured as a result of heart attack, panic, hyperventilation, drowning or any other cause, that I expressly assume the risk of said injuries and that I will not hold the Released Parties responsible for the same.

I further state that I am of lawful age and legally competent to sign this Liability Release and Assumption of Risk Agreement, or that I have acquired the written consent of my parent or guardian. I understand the terms herein are contractual and not a mere recital, and that I have signed this Agreement of my own free act and with the knowledge that I hereby agree to waive my legal rights. I further agree that if any provision of this Agreement is found to be unenforceable or invalid, that provision shall be severed from this Agreement. The remainder of this Agreement will then be construed as though the unenforceable provision had never been contained herein.

I hereby state and agree this Agreement will be effective for all activities associated with the Programs in which I participate within one year from the date on which I sign this Agreement.

I understand and agree that I am not only giving up my right to sue the Released Parties but also any rights my heirs, assigns, or beneficiaries may have to sue the Released Parties resulting from my death. I further represent I have the authority to do so and that my heirs, assigns, or beneficiaries will be estopped from claiming otherwise because of my representations to the Released Parties.

I, _____, participant name HAVE COMPLETED THE ATTACHED DIVER MEDICAL FORM (10346) AND I AFFIRM IT IS MY RESPONSIBILITY TO INFORM MY INSTRUCTOR OF ANY AND ALL CHANGES TO MEDICAL HISTORY AT ANY TIME DURING MY PARTICIPATION IN SCUBA PROGRAMS. I AGREE TO ACCEPT RESPONSIBILITY FOR OMISSIONS REGARDING MY FAILURE TO DISCLOSE ANY EXISTING OR PAST HEALTH CONDITION, OR ANY CHANGES THERETO.

I, _____, participant name BY THIS INSTRUMENT AGREE TO EXEMPT AND RELEASE MY INSTRUCTORS, DIVEMASTERS, THE FACILITY WHICH OFFERS THE PROGRAMS AND PADI AMERICAS, INC., AND ALL RELATED ENTITIES AND RELEASED PARTIES AS DEFINED ABOVE, FROM ALL LIABILITY OR RESPONSIBILITY WHATSOEVER FOR PERSONAL INJURY, PROPERTY DAMAGE OR WRONGFUL DEATH HOWEVER CAUSED, INCLUDING, BUT NOT LIMITED TO, THE NEGLIGENCE OF THE RELEASED PARTIES, WHETHER PASSIVE OR ACTIVE.

I HAVE FULLY INFORMED MYSELF OF THE CONTENTS OF THIS NON-AGENCY DISCLOSURE AND ACKNOWLEDGMENT AGREEMENT, LIABILITY RELEASE AND ASSUMPTION OF RISK AGREEMENT, DIVER MEDICAL AND STANDARD SAFE DIVING PRACTICES STATEMENT OF UNDERSTANDING BY READING THEM BEFORE SIGNING BELOW ON BEHALF OF MYSELF AND MY HEIRS.

Participant's Signature

Date (Day/Month/Year)

Signature of Parent or Guardian (where applicable)

Date (Day/Month/Year)



PADI®

ENRICHED AIR (NITROX) DIVER TRAINING

Please read carefully and fill in all blanks before signing.

Non-Agency Disclosure and Acknowledgment Agreement

I understand and agree that PADI Members ("Members"), including Kyalami Charters / Kyalami Scuba Club and/or any individual PADI Instructors and Divemasters associated with the program in which I am participating, are licensed to use various PADI Trademarks and to conduct PADI training, but are not agents, employees or franchisees of PADI Americas, Inc. or its parent, subsidiary and affiliated corporations ("PADI"). I further understand that Member business activities are independent, and are neither owned nor operated by PADI, and that while PADI establishes the standards for PADI diver training programs, it is not responsible for, nor does it have the right to control, the operation of the Members' business activities and the day-to-day conduct of PADI programs and supervision of divers by the Members or their associated staff. I further understand and agree on behalf of myself, my heirs and my estate that in the event of an injury or death during this activity, neither I nor my estate

shall seek to hold PADI liable for the actions, inactions or negligence of Kyalami Charters / Kyalami Scuba Club and/or the instructors and divemasters associated with the activity.

Liability Release and Assumption of Risk Agreement

I, Participant Name, hereby affirm that I am aware that scuba diving has inherent risks which may result in serious injury or death, and am aware of the particular hazards of scuba diving with oxygen enriched air.

I understand that diving with compressed air involves certain inherent risks; including but not limited to decompression sickness, embolism or other hyperbaric/air expansion injury that require treatment in a recompression chamber. I also understand that diving with oxygen enriched air ("Enriched Air") involves inherent risks of oxygen toxicity and/or improper mixtures of breathing gas. I further understand that the open water diving trips which are necessary for training and for certification may be conducted at a site that is remote, either by time or distance or both, from such a recompression chamber. I still choose to proceed with such instructional dives in spite of the possible absence of a recompression chamber in proximity to the dive site.

I understand and agree that neither my instructor(s), the facility through which I receive my instruction, Kyalami Charters / Kyalami Scuba Club, nor PADI Americas, Inc., nor its affiliate and subsidiary corporations, nor any of their respective employees, officers, agents, contractors or assigns (hereinafter referred to as "Released Parties,") may be held liable or responsible in any way for any injury, death or other damages to me, my family, estate, heirs or assigns that may occur as a result of my participation in this diving program or as a result of the negligence of any party, including the Released Parties, whether passive or active.

In consideration of being allowed to participate in this course, I hereby personally assume all risks of this program, whether foreseen or unforeseen, that may befall me while I am a participant in this program including all risks connected therewith, whether foreseen or unforeseen.

I further release, exempt and hold harmless said course and Released Parties from any claim or lawsuit by me, my family, estate, heirs or assigns, arising out of my enrollment and participation in this course including both claims arising during the course or after I receive my certification.

I also understand that scuba diving is a physically strenuous activity and that I will be exerting myself during this course, and that if I am injured as a result of heart attack, panic, hyperventilation, drowning or any other cause, that I expressly assume the risk of said injuries and that I will not hold the Released Parties responsible for the same.

I will inspect all of my equipment prior to the activities and will notify the Released Parties if any of my equipment is not working properly. I will not hold the Released Parties responsible for my failure to inspect my equipment prior to diving.

I further state that I am of lawful age and legally competent to sign this liability release, or that I have acquired the written consent of my parent or guardian.

I understand the terms herein are contractual and not a mere recital, and that I have signed this Agreement of my own free act and with the knowledge that I hereby agree to waive my legal rights. I further agree that if any provision of this Agreement is found to be unenforceable or invalid, that provision shall be severed from this Agreement. The remainder of this Agreement will then be construed as though the unenforceable provision had never been contained herein.

EQUIPMENT USE AND LEASE AGREEMENT

(LIABILITY AND ASSUMPTION OF RISK)

THIS AGREEMENT is entered into between Kyalami Scuba Club Inc. and Kyalami Charters Inc., and the renter, for the rental of scuba diving equipment. This AGREEMENT is a release of my rights to sue for the injuries or death resulting from the rental and/or use of this equipment.

I expressly assume all risks of scuba diving related in any way to the rental and/or use of this equipment. I hereby acknowledge receipt of the equipment designated in this form, and if any of this equipment is to be used for scuba diving I affirm I am a CERTIFIED SCUBA DIVER or STUDENT DIVER in a Scuba Diving Course/Program under the supervision of a CERTIFIED Scuba Instructor.

I acknowledge that the equipment is in good working condition and that I have examined the equipment to ensure that it is free from defects, including checking both the quality and the quantity of gas in any scuba tank(s) rented.

I acknowledge that Scuba Diving is a physically strenuous activity, that I will be exerting myself during this activity, and that if I am injured as a result of heart attack, panic, hyperventilation, drowning or any other cause, that I expressly assume the risk of said injuries and that I will not hold the Released Parties responsible for the same.

I also understand and agree that Kyalami Scuba Club Inc. and Kyalami Charters Inc., and their employees, owners, officers, agents, independent contractors, dive professionals, boat captains, crew, and dive boats (whether owned, operated, leased, or chartered) (hereinafter the "Released Parties"), shall not be held liable or responsible in any way for any injury, death or other damages to me or my equipment, whether resulting from product defect or the negligence of any party, including the Released Parties, whether passive or active.

I agree to reimburse the Dive Charter for loss or breakage of any and all equipment at the current replacement value and to also pay for damages incurred while transporting the equipment.

I agree to return the equipment in clean condition.

I further state I am of lawful age and legally competent to sign this liability release. I understand the terms herein are contractual and not a mere recital, and that I have signed this document of my own free act and with the knowledge that I hereby agree to waive my legal rights. I further agree that if any provision of this Agreement is found to be unenforceable or invalid, that provision shall be severed from this Agreement. The remainder of this Agreement will then be construed as though the unenforceable provision had never been contained herein.

I understand and agree that I am not only giving up my right to sue the Released Parties but also any rights my heirs, assigns, or beneficiaries may have to sue the Released Parties resulting from my death. I further represent I have the authority to do so and that my heirs, assigns or beneficiaries will be estopped from claiming otherwise because of my representations to the Released Parties.

I HAVE CAREFULLY READ AND UNDERSTAND THE ABOVE AGREEMENT. BY SIGNING THIS AGREEMENT, I EXEMPT AND RELEASE THE RELEASED PARTIES AND ALL RELATED ENTITIES AS DEFINED ABOVE, FROM ALL LIABILITY OR RESPONSIBILITY WHATSOEVER FOR PERSONAL INJURY, PROPERTY DAMAGE, OR WRONGFUL DEATH AS A RESULT OF RENTING AND/OR USING THE EQUIPMENT, HOWEVER CAUSED, INCLUDING, BUT NOT LIMITED TO, PRODUCT LIABILITY OR THE NEGLIGENCE OF THE RELEASED PARTIES, WHETHER PASSIVE OR ACTIVE. I HAVE FULLY INFORMED MYSELF AND MY HEIRS OF THE CONTENTS OF THIS LIABILITY RELEASE AND ASSUMPTION OF RISK AGREEMENT BY READING IT BEFORE I SIGNED IT ON BEHALF OF MYSELF AND MY HEIRS.

VESSEL LIABILITY RELEASE AND WAIVER

THIS IS A WAIVER OF YOUR RIGHTS TO SUE

I understand the purpose of signing this document is to exempt and release Kyalami Scuba Club Inc. and Kyalami Charters Inc., and their employees, owners, officers, agents, independent contractors, dive professionals, boat captains, crew, and dive boats (whether owned, operated, leased, or chartered) (collectively, the "Released Parties"), and to hold the Released Parties harmless from any and all liabilities arising as a consequence of any acts or omissions on their part, including, but not limited to, active or passive negligence.

I have been taught and understand that scuba diving is a hazardous activity with inherent risks and dangers associated therewith including, but not limited to, risks associated with equipment failure, perils of the sea, and acts of fellow divers, which could result in my serious injury or death. By way of my signature I expressly assume these risks. I assert that I am physically fit to participate in the sport of scuba diving and snorkeling and I agree by way of my signature that I will not hold any of the Released Parties responsible if I am injured as a result of any medical conditions while scuba diving and/or snorkeling. I do not have in my possession any illegal drugs, nor am I taking, nor have I recently taken any drugs or medications which could cause an adverse reaction as a result of combining such drugs and/or medication with scuba diving.

Prior to leaving the dock I will inspect all of my equipment to be used and I will notify the dive store/vessel of any equipment which I find to not be functioning properly. I will not hold the Released Parties responsible for my failure to inspect my equipment prior to diving.

I will be present and attentive to the safety briefings given by the dive masters, boat captain, and crew. I understand that I have an affirmative duty to plan and carry out my own dive and to be responsible for my own safety. By way of my signature I expressly agree that I will plan all my dives as no-decompression dives with at least a three-minute safety stop at 15 feet prior to ascending to the surface. I fully agree that I will start my ascent at the end of each dive with enough air to guarantee being on the vessel with a minimum amount of air in my tank as required by the dive leader. I will stay within 300 ft of the dive flag and will have the dive guide and my buddy in sight at all times. In addition I confirm that I have been diving within the last year of today's date.

I will immediately cease and abort my dive if:

- (1) I feel uncomfortable with my diving abilities; and/or
- (2) diving conditions are worse than those for which I have been trained or with which I am comfortable.

I am fully aware and have been trained in the dangers, risks, and hazards of holding my breath while diving on compressed air. I fully agree not to hold the Released Parties responsible for any such act by me. In the eventuality that I become distressed at the surface, I will immediately drop my weights and inflate my buoyancy compensator. I understand that if I want or need any assistance from the vessel, the dive master, or the captain I will give the proper "diver in trouble" signal. I understand that this activity may be conducted at a remote site by time and distance from a medical facility and a recompression chamber. Nevertheless I expressly wish to proceed with this trip.

I hereby acknowledge that injuries received may be compounded or increased by negligent rescue operations or procedures and agree that this waiver and release of liability, assumption of risk, and indemnity agreement extends to all acts of negligence, including negligent rescue operations, and is intended to be as broad and inclusive as is permitted by the laws of the State of Florida, and that if any portion thereof is held invalid, it is agreed that the balance shall, notwithstanding, continue in full legal force and effect.

This Agreement shall be governed by and construed in accordance with the laws of the State of Florida, without regard to its conflict-of-laws principles. The parties agree that any dispute arising under this Agreement shall be brought exclusively in the state or federal courts located in Florida.

By way of my signature on this document it is my express intention to give up my right to sue all of the Released Parties referred to herein, whether specifically named or not, and it is also my intention to exempt and relieve the Released Parties from all liability arising as a consequence of any act or omission including, but not limited to, active or passive negligence. By way of my signature on this document I fully agree to indemnify and hold the Released Parties harmless from any and all liability for personal injury of any sort, property damage, or wrongful death by myself, my heirs, and assigns, and I assume expressly all risks in connection with the activities of snorkeling and scuba diving.

By way of my signature given voluntarily I evidence that I have read fully and understand this document in its entirety. If I have any questions with respect to the contents of this document I certify that I have fully informed myself before signing my name below. I fully agree to the terms and conditions herein and realize they are given in exchange for the dive store and/or the vessel allowing me to participate in this activity. I understand that this is a contract.

ADULT PARTICIPANT — ACKNOWLEDGMENT AND SIGNATURE

By signing below, I affirm that I am at least 18 years of age and legally competent to sign this Agreement, and that I have read, understand, and agree to all terms above on behalf of myself, my heirs, assigns, and beneficiaries.

Participant Signature

Participant Printed Name

Date

PARENT OR GUARDIAN CONSENT FOR A MINOR PARTICIPANT

Complete this section only if the participant is under 18 years of age. The minor's parent or legal guardian must read and sign below.

NOTICE TO THE MINOR CHILD'S NATURAL GUARDIAN: UNDER FLORIDA LAW, A NATURAL GUARDIAN MAY, ON BEHALF OF ANY OF HIS OR HER MINOR CHILDREN, WAIVE AND RELEASE, IN ADVANCE, ANY CLAIM OR CAUSE OF ACTION AGAINST A COMMERCIAL ACTIVITY PROVIDER, OR ITS OWNERS, AFFILIATES, EMPLOYEES, OR AGENTS, TO THE EXTENT PERMITTED BY LAW, FOR PERSONAL INJURY OR DEATH RESULTING FROM AN INHERENT RISK OF THE ACTIVITY, EVEN IF SUCH INJURY OR DEATH IS CAUSED IN WHOLE OR IN PART BY THE NEGLIGENCE OF THE RELEASED PARTIES.

I represent that I am the parent or legal guardian of the minor named below. I have read and understand the EQUIPMENT USE AND LEASE AGREEMENT and the VESSEL LIABILITY RELEASE AND WAIVER above, and I agree to all of their terms on behalf of myself and the minor. On behalf of the minor and myself, and our respective heirs, assigns, and beneficiaries, I expressly assume all risks of scuba diving and snorkeling described above and I waive, release, and agree to indemnify and hold harmless the Released Parties from any and all claims, including those arising from the inherent risks of the activity and from the negligence (whether active or passive) of the Released Parties, to the fullest extent permitted by Florida law.

Parent / Legal Guardian Signature

Parent / Legal Guardian Printed Name

Relationship to Minor

Minor Participant Printed Name

Date